

Comments for Planning Application DM2025/01591

Application Summary

Application Number: DM2025/01591

Address: Ambulance Station Dorset Road Belmont SM2 6JH

Proposal: Change of use from Sui Generis (Ambulance Station) to mixed use Classes F1 (Places of Worship) and F2 (Community Hub) involving the erection of a part one, part two storey front and side extension, increase in height to part of building and provision of cycle and refuse stores.

Case Officer: Polly Davidson

Customer Details

Name: Mr Rajesh Falak

Address: 7 Furzedown Road Sutton SM2 5QE

Comment Details

Commenter Type:

Stance: Customer objects to the Planning Application

Comment Reasons:

Comment: FORMAL FORENSIC OBJECTION

Application: DM2025/01591

Site: Former Ambulance Station, Dorset Road, Belmont SM2 6JH

This objection is submitted on clear material planning grounds. It directly addresses the applicant's Transport Statement, Fire Strategy, and supporting representations, and demonstrates that the proposal fails to satisfy the statutory and policy tests required for approval.

1. Legal Framework and Policy Threshold

Under paragraph 115 of the National Planning Policy Framework (NPPF):

Development should only be refused on highways grounds if there would be an unacceptable impact on highway safety, or the residual cumulative impacts on the road network would be severe.

The applicant repeatedly asserts that objections are "speculative". However:

- The applicant's own modelling identifies substantial peak parking demand beyond on-site capacity.
- The site is located within a constrained residential network with known sensitive receptors.
- Weekly peak congregation of up to 240-297 persons is acknowledged in the submitted documents.

The planning question is not whether absolute gridlock occurs, but whether predictable, repeatable peak impacts produce severe cumulative stress in context.

Severity must be assessed relative to:

- Road typology (residential cul-de-sac environment),
- Sensitive land uses (primary school with 1,034 pupils),

- Existing background event venues,
- Available on-site capacity.

When assessed proportionately in this localised context, the threshold is engaged.

2. The "Lawful Fallback" Argument is Legally Misapplied

The applicant relies heavily on historic use as a 24-hour ambulance station.

This reliance is materially flawed for four reasons:

(a) Realistic Prospect Test

Case law establishes that fallback must represent a realistic and genuine prospect of implementation - not a theoretical abstraction.

No evidence has been submitted that:

- The NHS or emergency authority intends to recommence use.
- The building remains configured for operational emergency dispatch.
- Operational contracts remain in place.

Absent such evidence, the fallback argument carries limited weight.

(b) Operational Characteristics Are Fundamentally Different

Emergency fleet dispatch:

- Trained drivers.
- Controlled exit protocols.
- Short dwell time.
- Dispersed trip patterns.
- Non-congregational use.

Congregational use:

- Simultaneous arrival/departure.
- High dwell-time concentration.
- Private vehicle dominance.
- Circulation searching behaviour.
- Pedestrian clustering.

These are not comparable transport typologies.

Using emergency dispatch as a baseline materially understates the behavioural and parking implications of a congregation-based land use.

(c) Intensification vs Historical Use

Even if fallback were realistic, the assessment must consider intensity and pattern, not abstract vehicle numbers.

Weekly peak congregation of 200-250 attendees in a 60-90 minute overlap window represents concentrated loading not analogous to historic dispatch patterns.

3. The Applicant's Own Transport Evidence Demonstrates Structural Overspill

The Transport Statement identifies:

- 14 on-site spaces.

- 3 staff spaces.
- 11 available attendee spaces.
- Up to 80 vehicles during overlap.
- 69 vehicles reliant on surrounding streets.

This is not marginal overflow. It represents approximately 86% of peak demand displaced to residential streets.

The applicant describes this as "stress testing". However:

- Friday prayer is weekly.
- The overlap scenario is foreseeable and repeatable.
- The Fire Strategy confirms maximum building capacity of 297 persons.

Planning assessment must consider credible maximum utilisation - particularly where the building is being physically extended to facilitate increased occupancy.

4. Failure to Properly Assess Cumulative Impact

The assessment fails to model cumulative peaks with:

- Sutton Bowling Club (500+ members),
- Downs Lawn Tennis Club (event hire up to 80 attendees),
- Scheduled Friday evening events.

Cumulative impact assessment must evaluate overlapping peak windows.

The Transport Statement isolates this proposal from the surrounding event ecosystem. That is a methodological weakness.

Where predictable overlap exists, cumulative modelling is required.

5. Cul-de-Sac Constraints and Network Resilience

Dorset Road and Balmoral Way exhibit:

- Limited turning geometry,
- On-street parking reliance,
- Absence of distributed egress routes,
- Residential frontage with direct driveway access.

In cul-de-sac typology, congestion risk does not require high traffic volume - it requires constrained manoeuvring space.

Foreseeable behavioural consequences include:

- Multi-point turns,
- Reversing into pedestrian space,
- Circulatory "parking search" loops,
- Pavement overhang parking,
- Junction visibility impairment.

In proximity to a primary school with extended wraparound operations, these effects are amplified.

The absence of a Road Safety Audit specifically modelling congregation dispersal in this street typology is notable.

6. Residential Amenity - Late Evening Dispersal

The applicant acknowledges potential operation until 23:00.

Planning law recognises that residential amenity harm is not confined to amplified music.

Dispersal-related impacts include:

- Engine noise,
- Door closures,
- Conversational clustering,
- Vehicle searching,
- Idling emissions.

Weekly late-evening dispersal of 200+ attendees is materially different from incidental residential comings and goings.

The ambulance fallback comparison is inapposite; emergency dispatches are sporadic, not scheduled congregation events.

7. Vulnerable User Impact

Overspill parking and circulation behaviour create disproportionate risk to:

- Elderly residents,
- Mobility-impaired individuals,
- Children walking from Avenue Primary Academy,
- Families with pushchairs.

This engages both highway safety and residential amenity considerations.

8. Absence of Legally Binding Relocation Offset

The application assumes displacement from an existing venue.

No planning condition or legal agreement secures:

- Permanent cessation of the existing use,
- Prevention of dual operation,
- Restriction on maximum attendance below fire capacity.

Without such safeguards, net trip intensification remains a credible risk.

9. Conditions Cannot Cure Structural Capacity Deficit

While Travel Plans and stewarding are proposed, these measures:

- Cannot create physical parking capacity,
- Cannot prevent lawful on-street parking,
- Cannot eliminate circulation behaviour,
- Cannot eliminate cumulative event overlap.

Where structural capacity deficit exists (69 vehicles overspill at peak), conditions may mitigate but cannot neutralise impact.

OVERALL CONCLUSION

When objectively assessed:

- The proposal relies heavily on surrounding residential streets to absorb event-scale congregation.

- Peak congregation is weekly, predictable, and repeatable.
- The site sits within a constrained cul-de-sac typology adjacent to a large primary school.
- The fallback comparison is legally weak and operationally incomparable.
- Cumulative modelling is incomplete.
- Structural overspill parking is acknowledged by the applicant's own evidence.

Taken together, these factors demonstrate a credible risk of unacceptable highway impact and severe cumulative stress within the meaning of the NPPF.

The Council is therefore respectfully requested to:

REFUSE planning permission on the grounds of unacceptable highway safety risk, severe cumulative parking stress, and material harm to residential amenity.
